

GAHC010132582025



2025:GAU-AS:10438

THE GAUHATI HIGH COURT
(HIGH COURT OF ASSAM, NAGALAND, MIZORAM AND ARUNACHAL PRADESH)

Case No. : Crl.Pet./705/2025

AKASH JYOTI GAYAN
S/O- RAMEN GAYAN.
VILL.- JORHAT DAGAYAN GAON.
P.S.- PULIBOR,
DIST.- JORHAT, ASSAM.

VERSUS

THE STATE OF ASSAM AND ORS
REPRESENTED BY THE PP ASSAM

2:KABERI NATH
W/O- AKASH JYOTI GAYAN.
D/O- KARENDRA NATH.
VILL.- KARAITOLA NATHPARA.
P.S.- FAKIRAGRAM.
DIST.- KOKRAJHAR
(ASSAM)
P.O.- FAKIRAGRAM.
PIN-78334

Advocate for the Petitioner : MR F HAQUE, MR A ISLAM

Advocate for the Respondent : PP, ASSAM, MR. A SHARMA (R-2)

BEFORE

HON'BLE MR. JUSTICE SANJEEV KUMAR SHARMA

Date of Hearing : 06.08.2025

Date of Judgment : 08.08.2025

JUDGMENT AND ORDER

(S.K. Sharma, J)

Heard Mr. F Haque, learned counsel for the petitioner and Mr. D P Goswami, learned Additional Public Prosecutor, Assam for the State. Also heard Mr. A Sharma, learned counsel for the respondent No. 2.

2. This is an application under Section 528 of the BNSS, for quashing of the Charge-Sheet in connection with Boko Police Station Case No. 71/2025 registered under Section 69 of the BNS, 2023.

3. The respondent No. 2 herein, Kaberi Nath, lodged an FIR on 10.03.2025 before the Officer-in-Charge of Boko Police Station, stating therein that she had a love affair with the accused since August, 2024 and during this period the accused person had physical relationship with her by falsely promising to marry her and in the month of March, 2025, the accused person refused her love relation as he was having love affair with another girl.

4. Accordingly, the said FIR was registered as Boko Police Station Case No. 71/2025 under Section 69 of the BNS, 2023 and after completion of investigation, the Investigating Officer of the case submitted charge-sheet under Section 69 of BNS, 2023 vide Charge-Sheet No. 77/2025 dated 26.04.2025.

5. It is submitted on behalf of the petitioner that after the petitioner was granted bail he has entered into marriage with the respondent No. 2 and now they are leading a happy

conjugal life. In this regard, an affidavit has been submitted by the respondent No. 2, wherein it is stated that she had lodged the FIR as the petitioner had refused (sic) their love affair and stated that he will marry another girl. She has further stated that she and the petitioner have entered into marriage as per Hindu rites and rituals and they are leading a happy conjugal life and thus buried her grievances.

6. Mr. A Sharma, learned counsel for the respondent No. 2 has also prayed before this Court for quashing of the Charge-Sheet and the further proceedings.

7. I have duly considered the submissions advanced by the parties and also perused the contents of the FIR, Charge-Sheet and the relevant documents available on record.

8. It is by now settled that a High Court in exercise of its power under Section 482 of Cr.P.C. can very well quash a criminal proceeding or a criminal complaint under Section 482 of Cr.P.C., but while doing so, the Court is to follow certain principles as enunciated by the Hon'ble Apex Court in *Gian Singh –Vs- State of Punjab and Another* reported in 2012 10 SCC 303, and in *State of Madhya Pradesh –Vs- Laxmi Narayan and Others* reported in 2019 5 SCC 688.

9. In the case of *Laxmi Narayan, (supra)*, the Hon'ble Supreme Court has laid down certain guidelines for exercise of powers under Section 482 Cr.P.C., it is submitted that instant case falls within the guidelines laid down by the Hon'ble Supreme Court.

10. For ready reference, paragraph-13 of *Laxmi Narayan (Supra)* is extracted herein below:

“13. Considering the law on the point and the other decisions of this Court on the point, referred to hereinabove, it is observed and held as under:

(i) that the power conferred under Section 482 of the Code to quash the criminal proceedings for the non-compoundable offences under Section 320 of the Code can be exercised having overwhelmingly and predominantly the civil character, particularly those arising out of commercial transactions or arising out of matrimonial relationship or family disputes and when the parties have resolved the entire dispute amongst themselves;

(ii) such power is not to be exercised in those prosecutions which involved heinous

and serious offences of mental depravity or offences like murder, rape, dacoity, etc. Such offences are not private in nature and have a serious impact on society;

iii) similarly, such power is not to be exercised for the offences under the special statutes like Prevention of Corruption Act or the offences committed by public servants while working in that capacity are not to be quashed merely on the basis of compromise between the victim and the offender;

iv) offences under Section 307 IPC and the Arms Act etc. would fall in the category of heinous and serious offences and therefore are to be treated as crime against the society and not against the individual alone, and therefore, the criminal proceedings for the offence under Section 307 IPC and/or the Arms Act etc. which have a serious impact on the society cannot be quashed in exercise of powers under Section 482 of the Code, on the ground that the parties have resolved their entire dispute amongst themselves. However, the High Court would not rest its decision merely because there is a mention of Section 307 IPC in the FIR or the charge is framed under this provision. It would be open to the High Court to examine as to whether incorporation of Section 307 IPC is there for the sake of it or the prosecution has collected sufficient evidence, which if proved, would lead to framing the charge under Section 307 IPC.

For this purpose, it would be open to the High Court to go by the nature of injury sustained, whether such injury is inflicted on the vital/delegate parts of the body, nature of weapons used etc. However, such an exercise by the High Court would be permissible only after the evidence is collected after investigation and the charge sheet is filed/charge is framed and/or during the trial. Such exercise is not permissible when the matter is still under investigation. Therefore, the ultimate conclusion in paragraphs 29.6 and 29.7 of the decision of this Court in the case of Narinder Singh (supra) should be read harmoniously and to be read as a whole and in the circumstances stated hereinabove;

v) while exercising the power under Section 482 of the Code to quash the criminal proceedings in respect of non-compoundable offences, which are private in nature

and do not have a serious impact on society, on the ground that there is a settlement/compromise between the victim and the offender, the High Court is required to consider the antecedents of the accused; the conduct of the accused, namely, whether the accused was absconding and why he was absconding, how he had managed with the complainant to enter into a compromise etc.”

11. It is well settled that this court should not normally exercise its power under Section 482 Cr.P.C. to quash offences of heinous nature having social impact on the basis of settlement between the parties. However, the Hon’ble Apex Court in the case of *Kapil Gupta Vs State of NCT of Delhi & Anr.* reported in 2022 SCC Online SC 1030 after dealing with the law laid down in this behalf has 2024 concluded that though the court should be slow in quashing the proceeding wherein heinous and serious offences are involved, the High Court is not foreclosed from examining as to whether there exists material for incorporation of such an offence or as to whether there is sufficient evidence which if proved would lead to proving the charge for the offence charged with. It was further held that the Hon’ble court has also to look into consideration as to whether the settlement between the parties is going to result into harmony between them which may improve their mutual relationship.

12. It is apparent from the FIR itself that there was an existing relationship between the petitioner and the respondent No. 2. The prosecutrix who was 22 years old had continuously chosen to enter into physical relationship and continued it for long, despite not being married. The Hon’ble Supreme Court in the case of *Mandar Deepak Pawar -Vs- The State of Maharashtra & Another.*, [Criminal Appeal No(s). 442/2022 (decided on 27.07.2022)] observed that in that case the parties chose to have physical relationship without marriage for a considerable period of time. For some reason, the parties fell apart. It can happen both before or after marriage. This was a case of consensual physical relationship on the assurance of marriage, where the Hon’ble Supreme Court quashed the FIR holding that the registration thereof was an abuse of the criminal process.

13. In view of the aforesaid stand taken by both the parties, this Court is of the view that although the allegations, on the face of it is serious, in the given facts of the present case, having regard to the present stand of the alleged victim, no fruitful purpose would be served

by allowing the trial to commence. Rather, it is likely to result in unproductive expansion of judicial time and would cause harm to the reputation of the alleged victim herself and ending the matter at this stage would not have any adverse social impact.

14. Considering the factual background of the present case and also considering the nature of offence including the settlement arrived at between the parties, this Court is of the considered opinion that this is a fit case, where this Court should exercise its inherent power under Section 482 of CrPC to quash the Charge-Sheet No. 77/2025 dated 26.04.2025 and any further proceeding arising out of Boko Police Station Case No. 71/2025 registered under Section 69 of the BNS, 2023.

15. Accordingly, this criminal petition is allowed by setting aside and quashing the Charge-Sheet No. 77/2025 dated 26.04.2025 and any further proceeding arising out of Boko Police Station Case No. 71/2025.

JUDGE

Comparing Assistant